

25VECV04912 25VECV04912

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-07-28

Motion: PLAINTIFF'S MOTION TO COMPEL DEFENDANT PRUNO VETERINARY ENTERPRISES, INC. TO FURTHER RESPOND TO PLAINTIFF'S FORM INTERROGATORIES

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Case Number: 25VECV04912 Hearing Date: July 28, 2026 Dept: W

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JOSE MACIEL, an individual,

Plaintiff,

vs.

PRUNO VETERINARY ENTERPRISES,

INC., a California corporation; MICHAEL

PITT, an individual; and DOES 1-100,

Inclusive,

Defendants.

CASE NO: 25VECV04912

[TENTATIVE] ORDER RE:

PLAINTIFF'S MOTION TO COMPEL DEFENDANT PRUNO VETERINARY ENTERPRISES, INC. TO FURTHER RESPOND TO PLAINTIFF'S FORM INTERROGATORIES

Dept. W

8:30 a.m.

July 28, 2026

[TENTATIVE] ORDER: The Court GRANTS Plaintiff's Motion to Compel Further Responses to Form Interrogatories 215.1 and 12.2. The Court also GRANTS Plaintiff's request for discovery sanctions in the modified amount of \$1,500.00.

Background

This is an employment law case. Plaintiff Jose Maciel alleges that his former employer, Defendants Pruno Veterinary Enterprises, Inc. and Michael Pitt violated multiple provisions of the California Labor Code, and wrongfully terminating Plaintiff's employment. Among other things, Plaintiff alleges he was regularly not paid for overtime work, or his standard wages.

On August 29, 2025, Plaintiff brought suit against Defendants, alleging eleven separate causes of action: 1) Retaliation in Violation of Cal. Labor Code § 98.6; 2) Retaliation in Violation of Cal. Labor Code § 1102.5; 3) Wrongful Termination in Violation of Public Policy; 4) Failure to Pay Overtime Compensation; 5) Failure to Pay Minimum Wage; 6) Failure to Provide Meal Periods; 7) Failure to Provide Rest Breaks; 8) Failure to Pay Wages Due Upon Termination; Waiting Time Penalties; 9) Failure to Issue Accurate and Itemized Wage Statements; 10) Failure to Indemnify; and 11) Unlawful Business Practices in Violation of CA B&P Code 17200.

Now, Plaintiff moves to compel further responses to two form interrogatories from Defendant Pruno Veterinary Enterprises, Inc.

Meet and Confer

A motion to compel further responses, "shall be accompanied by a meet and confer declaration under Section 2016.040." (CCP § 2033.290(b)(1); CCP §§ 2030.300(b)(1); 2031.310(b)(2).) The declaration must state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented in the motion. (CCP § 2016.040.)

Here, Plaintiff submits the declaration of Kelly Ha, who states that Plaintiff sent two separate meet and confer letters to Defendant to discuss the issues raised in this discovery motion. (Ha Decl. ¶¶ 5, 7.) While the parties were able to agree on some supplemental responses, two outstanding interrogatories remain in dispute. (Id. ¶¶ 6, 8, 9.)

Typically, this Court does not find that simple meet and confer emails are sufficient to establish a good faith effort to meet and confer. However, given that Plaintiff met and conferred repeatedly, and was able to narrow down the scope of this discovery dispute to a single topic, the Court will opt to hear the motion on the merits.

Discussion

i) Motion to Compel Further

Plaintiff moves to compel further responses to two form interrogatories from Defendant Pruno Veterinary Enterprises, Inc.

CCP § 2030.300(a) provides, “On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: 1) An answer to a particular interrogatory is evasive or incomplete; 2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate; 3) An objection to an interrogatory is without merit or too general.” (CCP § 2030.300(a).)

Here, Plaintiff moves to compel further responses to General Form Interrogatory No. 12.2, and Employment Interrogatory No. 215.1. (Sep. Statement, p. 2:3-12.) These two FROGs request functionally identical information.

FROG No. 215.1 asks:

“Have YOU OR ANYONE ACTING ON YOUR BEHALF interviewed any individual concerning the ADVERSE EMPLOYMENT ACTION? If so, for each individual state:

(a) the name, ADDRESS, and telephone number of the individual interviewed;

(b) the date of the interview; and

(c) the name, ADDRESS, and telephone number of the PERSON who conducted the interview.” (Sep. Statement, p. 2:7-12.)

Similarly, Employment FROG No. 12.2 states:

“Have YOU OR ANYONE ACTING ON YOUR BEHALF interviewed any individual concerning the INCIDENT? If so, for each individual state:

(a) the name, ADDRESS, and telephone number of the individual interviewed;

(b) the date of the interview; and

(c) the name, ADDRESS, and telephone number of the PERSON who conducted the interview.” (Id. p. 3:21-26.)

In response to both of these discovery requests, Plaintiff objects, stating that the terms “incident”, “adverse employment action”, and “interviewed” are vague and ambiguous terms. (Sep. Statement, p. 3:3-6.) Plaintiff also states that this information is protected by attorney client privilege. (Sep. Statement, p. 3:7-10.) Finally, Plaintiff states that, “[s]ubject to and without waiving the foregoing objections . . . Defendant has not conducted any non-privileged interviews.” (Id. p. 3:11-13.)

The Court finds these objections improper and answers incomplete. First, this is a lawsuit about Plaintiff’s wrongful firing. (Compl. ¶ 19.) While there are other employment incidents at issue, the context of this case makes it clear that the terms “incident” and “adverse employment action” reference Plaintiff’s firing.

Second, the Court is unconvinced that answers to either of these interrogatories involve privileged information. Notably, these requests only ask for contact details for individuals who were interviewed, not the contents of those interviews. Thus, the only way for Defendant to establish that this information is privileged is to show that simply knowing the identities of the individuals interviewed would disclose privileged work product.

In theory, witness-related interview information may be protected if the resisting party establishes that “answering the interrogatory would reveal the attorney’s tactics, impressions, or evaluation of the case, or would result in opposing counsel taking undue advantage of the attorney’s industry or effort.” (Coito v. Superior Court (2012) 54 Cal.4th 480, 502.)

Defendant fails to establish that this information would reveal any crucial impressions or information. Rather than address specific facts about the interviews, Mr. Poplawski relies on general statements about the strategic nature of the interviews, such as, “[d]isclosure of the identities of any such interviewees would reveal counsel’s tactical and evaluative judgments, including which witnesses counsel considered significant, which factual areas counsel prioritized, and how counsel chose to allocate investigative effort” and that fact that prior counsel did not interview, “every conceivable witness.” (Id. ¶¶ 12, 15.) These are not facts that establish the need for discovery protections. To give a contrasting example, the hypothetical bus accident the Coito court used to illustrate when disclosure of identities might reveal tactical judgments was highly factually specific as to the context of the interviews, the unique qualities of the interviewed witnesses, as well as the attorney’s efforts in procuring that information. (Coito, supra, at 501.) Here, Defendant does not provide similar factual specificity.

Additionally, the Court is not convinced that Defendant’s attorney Mr. Poplawski has the appropriate foundation to provide a declaration in support of this argument. Mr. Poplawski states that he substituted into this case in June of 2026, and did not personally conduct any of these supposedly privileged interviews. (Poplawski Decl. ¶ 4.) If Mr. Poplawski was not responsible for these interviews, it strikes the Court as implausible that can he attest to their strategic nature.

Moreover, Mr. Poplawski repeatedly uses the language “if any” in reference to these interviews. For instance, he states, “any interviews that were conducted, if any, were the product of counsel’s selective judgment concerning which individuals, if any, warranted follow-up based on counsel’s evaluation of the issues.” (Id. ¶ 13.) This language suggests one of two things – either Defendant’s counsel is not aware of any interviews that took place, or that none took place at all. Either scenario undermines Mr. Poplawski’s declaration.

For these reasons, the Court finds Defendant’s objections and responses to these two interrogatories are insufficient. Thus, the Court GRANTS the Motion to Compel Further as to both interrogatories.

ii) Discovery Sanctions

Plaintiff also requests \$3,250.00 in discovery sanctions against Defendant and their counsel of record. (MTCF, p. 7:1-3.)

Under CCP § 2030.290(c), “[t]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP § 2030.290(c).)

Here, the Court has already found Defendant’s objections to these discovery requests unfounded. Thus, the Court finds sanctions are appropriate.

However, the Court finds Plaintiff’s requested amount unreasonable. Plaintiff bases this request on 6.5 hours of work, billed at a rate of \$500 an hour. (Poplawski Decl. ¶ 10.) The Court takes issue with Plaintiff billing 1 hour for anticipate attendance at the hearing on this motion. The Court does not anticipate this hearing lasting more than a few minutes. Thus, the Court reduces this request to 0.5. Additionally, the Court does not find the combined 3 hours in anticipated billing for review of the Opposition and drafting a Reply to be reasonable. The Court reduces these hours by 1.

Additionally, the Court finds Plaintiff’s request for \$500 an hour unreasonable. This is a simple discovery dispute involving two nearly identical requests. Incurring such high billable rates in pursuit of a minor discovery dispute is not a reasonably incurred cost. Thus, the Court reduces this hourly rate to \$300 an hour.

Based on Plaintiff's reduced hours and rates, the Court calculates Plaintiff's reasonably incurred fees at \$1,500.00.

Thus, the Court GRANTS Plaintiff's request for discovery sanctions in the modified amount of \$1,500.00.

Conclusion

The Court GRANTS Plaintiff's Motion for Compel Further Responses to Form Interrogatories 215.1 and 12.2. The Court also GRANTS Plaintiff's request for discovery sanctions in the modified amount of \$1,500.00.

IT IS SO ORDERED, Plaintiff TO GIVE NOTICE.

July 28, 2026

Judge of the Superior Court